



February 17, 2025

Delegate Don Scott
Speaker of the VA House of Delegates
201 North 9th Street, Room 1403
Richmond, VA 23219

Delegate Charniele Herring
Majority Leader of VA House of Delegates
201 North 9th Street, Room 1402
Richmond, VA 23219

Delegate C. Todd Gilbert
Minority Leader of VA House of Delegates
201 North 9th Street, Room 1401
Richmond, VA 23219

Delegate C. E. Hayes Jr.
Chair, Communications, Technology
and Innovation Committee
201 North 9th Street, Room 1111
Richmond, VA 23219

Delegate Irene Shin
Vice Chair, Communications, Technology
and Innovation Committee
201 North 9th Street, Room 1115
Richmond, Virginia 23219

RE: Letter in Opposition to Virginia SB 1023

Dear Speaker Scott, Majority Leader Herring, Minority Leader Gilbert, Chairperson Hayes, and Vice Chairperson Shin:

On behalf of the advertising industry, we write to oppose Virginia SB 1023.¹ We provide this letter to express our non-exhaustive list of concerns about this bill. Our organizations support meaningful privacy protections for Virginians. As presently drafted, SB 1023 contains substantive provisions flatly banning the sale of precise geolocation data that are out-of-step with privacy legislation in other states and inconsistent with already existing consumer protections under the Virginia Consumer Data Protection Act (“VCDPA”). Accordingly, we ask you to decline to advance this bill.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² By one estimate, over 300,000 jobs in Virginia are related to the ad-subsidized Internet.³ We would welcome the

¹ Virginia SB 1023 (2025 Session), located [here](#).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

³ *Id.* at 135.

opportunity to engage with you further on the non-exhaustive list of issues with SB 1023 outlined here.

I. SB 1023's proposed ban would ignore existing VCDPA protections, diverge from the approach to precise geolocation data used across all other effective state privacy laws, and stop Virginia consumers from receiving desired location-based services.

Under the VCDPA, precise geolocation data is considered sensitive personal information and is therefore already subject to stringent requirements.⁴ Companies must obtain clear, affirmative opt-in consent from consumers before collecting, processing, or sharing this type of data.⁵ This ensures that consumers have greater control over their personal information and can make informed decisions about who can access and use their precise geolocation data. Like Virginia, almost every other state that has passed an omnibus privacy law has embraced this opt-in consent approach for precise geolocation data sales. The states that have not taken this approach require a notice and opt out. Instead of imposing a strict ban on this activity, we strongly believe consumers should be able to control how their location data is used. Under Virginia law today, upon a consumer's consent, precise geolocation data may be transferred to provide them benefits, such as coupons or other relevant advertising for products and services close in proximity to them. Imposing a complete ban on the sale of precise geolocation data would inhibit Virginia businesses' ability to provide useful services, including marketing and advertising, and Virginia consumers would experience reduced access to pertinent messaging and offerings they desire and expect.

* * *

⁴ VCDPA § 59.1-575.

⁵ *Id.* at § 59.1-578.



We and our members strongly support meaningful privacy protections for consumers. We believe, however, that SB 1023 would impose an unnecessary ban that would unreasonably restrict the free flow of information that powers the economy and Virginians' access to helpful resources. We therefore respectfully ask you to decline to advance SB 1023 as proposed, and we welcome the opportunity to engage with you further about the concerns raised in this letter.

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Lartase Tiffith
Executive Vice President, Public Policy
Interactive Advertising Bureau
212-380-4700

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria, CIPP, CISSP
Executive Director
Digital Advertising Alliance
347-770-0322

CC: Members of the House Committee on Communications, Technology, and Innovation

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP